



JAMAICA CONSTABULARY FORCE

Domestic Violence ICARE Handbook

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**JAMAICA
CONSTABULARY
FORCE**

Rule of Law • Respect for All • A Force for Good

**CHOOSE
A BETTER
WAY>>**

DOMESTIC VIOLENCE INTERVENTION CENTERS

CLARENDON

Hayes Police Station
(876) 968-5130, (876) 816-8028

KINGSTON

Constant Spring Police Station
(876) 702-5120-1

Matilda's Corner Police Station - (876) 946-2872

ST. ANN

Alexandria Police Station
(876) 975-1016, (876) 312-1235

ST. CATHERINE

Greater Portmore Police Station (100 Man)
(876) 949-8392

Braeton Parkway - (876) 949-8422

ST. ELIZABETH

Santa Cruz Police Station
(876) 966-2289, (876) 224-1981

ST. MARY

Gayle Police Station
(876) 975-8112, (876) 322-0434

ST. THOMAS

Morant Bay Police Station - (876) 516-8233

ST. THOMAS

Yallahs Police Station - (876) 982-7278

WESTMORELAND

Negril Police Station
(876) 975-4268, (876) 997-2262

NO ONE GETS TURNED AWAY



THE JAMAICA CONSTABULARY FORCE DOMESTIC VIOLENCE

ICARE

Intervention. Counselling. Awareness. Response. Empathy

HANDBOOK

**PRODUCED BY THE CORPORATE COMMUNICATIONS
UNIT, THE JAMAICA CONSTABULARY FORCE
'A FORCE FOR GOOD'**

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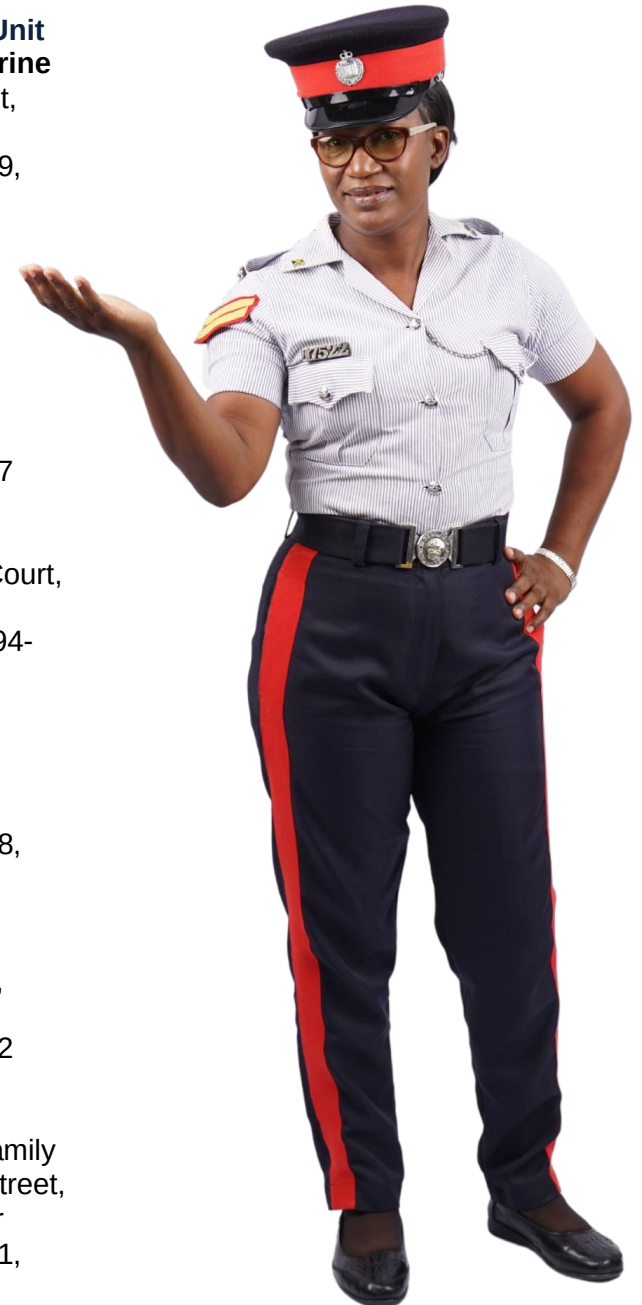
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Street,
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St. Mary Parish Court,
Main Street, Port
Maria **Tel:** 876-994-
9125

St Thomas:
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Morant Bay
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876-734-5650

Trelawny:
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Falmouth
Tel: 876-617-5522

Westmoreland:
Westmoreland Family
Court, 26 Rose Street,
Savannah-La-Mar
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876-918-0157



ESSENTIAL CONTACTS

Bureau of Gender Affairs
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Kingston 10
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Dispute Resolution Foundation

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Email: dr@drfja.org

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Uptown Shopping
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Lucea
Tel: 876-956-3143

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Rural Agricultural
Development Authority
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Mandeville
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Portland

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Tel: 876-993-4542

St Ann:

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ACKNOWLEDGEMENTS

The Jamaica Constabulary Force (JCF) expresses sincere appreciation to all the organisations, agencies and departments that made the preparation of this Handbook possible.

We are the island's foremost and most visible law enforcement agency, and we remain committed to providing information and intervention in tackling domestic violence within Jamaica.

However, we cannot do it alone and are grateful to the various stakeholders who have supported this mission.

We specially acknowledge:

- The Spotlight Initiative
- The United Nations Population Fund (UNFPA) for its unequivocal guidance on the Handbook's production
- The United States Embassy
- The JCF's Domestic Violence Unit that works assiduously to create awareness and provide resolve to all parties involved in these situations.

As this Handbook is incorporated into the JCF's suite of Domestic

Violence response resources, as well as enhances the wider local literature on domestic violence awareness, we acknowledge the far reaching toll that domestic violence brings.

While it is dubbed as the 'silent crime' the disruption and devastation that it lays on victims, families, communities and the society at large echo in volumes.

And so, we must acknowledge the resilience of those who are currently enduring domestic abuses and reassure them that we are here to help; the bravery of those who survived and escaped their ordeal; and those who, regrettably, lost their struggle.

We acknowledge too those who fervently fight and advocate for changes in legislature and the treatment of victims. We stand with you.

We look forward to this Handbook being the difference that we all seek in reducing domestic violence and to creating a safer Jamaica.



(587-8423)
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customerservice@moj.gov.jm

St Elizabeth:
80 Main Street, Santa
Cruz
Tel: 876-966-3481

THE SPOTLIGHT INITIATIVE

The Spotlight Initiative is a partnership between the United Nations and the European Union that spans 29 countries with an investment of 500 million Euro.

The initiative represents one of the largest global efforts to eliminate all forms of violence against women and girls and is underpinned by the core principles of the 2030 Agenda for sustainable development: Leaving No One Behind.

In Jamaica, the Spotlight Initiative was launched by the honourable Prime Minister Andrew Holness in March 2020; it provides a unique opportunity to address family violence as a major public health and development issue that has significant consequences at the individual, community and national levels.

The initiative has different pillars that all together have the potential to be transformative in ending family violence. Pillar 4 of the Spotlight Initiative focuses on strengthening the quality of essential services for victims and survivors of gender based Violence, and has supported the establishment of six Domestic Violence Intervention Centres across Jamaica.

The United Nations Population Fund (UNFPA) provides technical assistance to rollout the Essential Service Package (ESP) for multi-sectoral survivor-centred care for survivors of gender-based violence and leads on Pillar 4 of the Spotlight Initiative.

The UNFPA has collaborated with the Community Safety and Security Branch



(CSSB) of the Jamaica Constabulary Force (JCF) in training police officers on the appropriate and quality intervention to address domestic violence cases in line with the Jamaican legal framework, the survivor centred approach and the ESP.

From March to November 2022, approximately 500 police officers were trained island wide, including all the centre managers of the domestic violence intervention centres who were provided with in depth training. During this process, the CSSB and UNFPA identified the need to produce and print the present Manual for distribution in the police stations as an important aid for police officers providing services and a guide for survivors of GBV, that will have an additional tool that will enable them to make informed decisions.

DVI LIAISON OFFICERS

AREA 5

Area 5 HQ	Inspector Ian Purrier	876-512-3953 ian.purrier@jcf.gov.jm
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St. Catherine North	Inspector Ishmale Williams	876-442-7672 ishmale.williams@jcf.gov.jm
St. Catherine South	DSP Paulette Baker	876-322-5567 paulette.baker@jcf.gov.jm
St. Thomas	DSP Courtney Coley	876-298-6032 courtney.coley@jcf.gov.jm

Disclaimer: The views and opinions expressed in this publication are the authors' alone and may not necessarily reflect those of the Spotlight Initiative, the European Union, or of the United Nations funds, programmes, and specialised agencies.



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Kingston West	ASP Noel Daley	876-861-8359 noel.daley@jcf.gov.jm
St. Andrew Central	Inspector Claudia Bailey Finlayson	876-457-0718 claudia.bailey@jcf.gov.jm
St. Andrew South	Inspector Novelette	876-848-9235 novelette.walters@jcf.gov.jm

**You do not deserve to be abused.
Being abused is not your fault.
We are here to help you.**



remains grossly under-reported. Nevertheless, if the JCF does not respond to such reports/incidents with the



Major General Antony Anderson Commissioner of Police

Jamaican women are ambitious, strong and provide significant leadership within the country. This fierce independence, however, runs in stark contrast to the abusive situations that so many encounter.

It appears that the perpetrators, mostly men, feel they have a right to impose themselves on their victims and they must be disavowed of this notion.

Everyday police officers deal with domestic abuse/violence incidents, but the issue

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MESSAGE: COMMISSIONER OF POLICE

e
Violence Intervention their part in addressing this issue.

(DVI) policy and protocols
and fast track reforms
where necessary, to
include more targeted
training and a more
stringent reporting
framework.

This **DVI Handbook** is a
part of that elevated
response as we help to
inform citizens on how to
prevent DV, protect
themselves and where to
seek help.

It must also be stressed
that victims of domestic
abuse/violence are
required to participate in
the investigative and court
process in order for the
matter to be settled. If, at
any stage of the
proceedings, the
complainant (victim)
decides not to pursue the
matter, then the judicial
process will be stymied.

The unique
circumstances of domestic
violence have been
brought into sharp focus
within
the organisation and we
are striv- ing to deliver a
consistently high standard
of service in this regard.

The JCF is committed to pro-
tecting the people of
Jamaica and I also

MESSAGE: COMMUNITY SAFETY AND SECURITY BRANCH



Ms. Charmine Shand
Assistant Commissioner of Police
(Actg)

Over the years, we have seen the im- pact of domestic violence (DV) on inti- mate partners, children, and families. Hence, the Community Safety and Se- curity Branch (CSSB), which is the arm of the Jamaica Constabulary Force re- sponsible for providing targeted inter- ventions, is ensuring that, as a country, we seek to eliminate or reduce these violent acts.

We must forge ahead, ensuring that everyone knows what DV is, their role in preventing it or seeking help for themselves or persons affected.

We have been intentional in how we seek to address this challenge,

by fo-

DVI LIAISON OFFICERS

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AREA 3

NO ONE GETS TURNED AWAY.

DVI LIAISON OFFICERS

AREA

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MESSAGE: JCF DVI NATIONAL COORDINATOR



Ms. Jacqueline Dillon
Deputy Superintendent of Police

The issue of domestic violence (DV) has become a pervasive one over the last six years. The Jamaica Constabulary Force (JCF), in its quest to maintain law and order, is committed to developing and implementing strategies that will address this issue and improve public confidence in policing.

DV incidents continue to contribute to the national crime statistics, have a grave impact on our public health facilities, and negatively affect the national economy.

No longer can it be seen as persons' private business as any violence in the home also has implications for the safety and security of communities.

Hence, the JCF has partnered with United Nations under the Spotlight Initiative to increase the numbers of Domestic Violence Intervention Centers island-wide from four to ten. These centers provide a safe space for victims and perpetrators to get access counselling and other intervention programmes, which assist in resolving some of the issues before they reach crisis stage.

I am also honoured to head the Domestic Violence Unit in the Community Safety and Security Branch that ensures the utmost priority is given to police response and follow-ups in these cases. The assigning of Divisional Domestic Violence Liaison officers, as well as domestic violence center Managers, further ensure that the response is in keeping with policy directives and in accordance with the direct accountability framework established.

It behooves all Jamaicans to ensure that help is given to both victims and perpetrators of domestic violence at an early stage. As a nation, let us become more integral in the "help seeking" process so that incidents of domestic violence can be reduced.

I encourage all Jamaicans to get on board, work with the police, community based organizations and other social service agencies to tackle incidents of domestic violence for safer communities.



most difficult
experiences. It is not just a
job to me, but a proud
mission

DEFINING DOMESTIC VIOLENCE

Domestic violence is any consistent behavior the purpose of which is to gain power and control over a spouse, partner, girl/boyfriend or intimate family member. Abuse is a learned behavior. In essence, domestic abuse is a willful act of abuse by the

perpetrator to exercise power and control over a victim.



Domestic violence can happen anyone, of any age, sexual or

Abuse is physical, sexual, emotional, economic or psychological actions or threats of actions that influence another person.

This includes any behaviours that frighten, intimidate, terrorise, manipulate, hurt, humiliate, blame, injure, or wound someone. It can occur within a range of relationships including couples who are married, living together, dating or are separated. Domestic violence affects people of all socioeconomic backgrounds and education levels.

Victims of domestic abuse may also include a child or other relative, or any other household member. Incidents are rarely isolated, and usually escalate in frequency and severity. Domestic abuse may culminate in serious physical injury or death.

CONTACT A DVI CENTRE/MANAGER



CLARENDON

CONS. MARLENE WHITE-JARRETT

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Mobile Number: (876) 362-7695

Email: dvicare.hayes@jcf.gov.jm



ST. ELIZABETH

CPL. DESRENE MCLEOD

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WESTMORELAND

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Mobile Number: (876) 997-2262

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ST. ANN

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SGT. LATOYA GARRICK

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ST. ANDREW

CPL KERRON HARRIS

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ST. THOMAS (YALLAHS)

CONS. KEIRA THOMPSON

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ST. THOMAS (MORANT BAY)

CONS. JUNLIE EAST

Centre Number: (876) 516-8233

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ST. CATHERINE

CPL. DAMION HAMMOND

Centre Number: (876) 809-4213

Mobile Number: (876) 427-7202

Email: dvicare.portmore@jcf.gov.jm

UNDERSTANDING DOMESTIC VIOLENCE

Domestic Violence is widespread. One of its major manifestation is Intimate Partner Violence. According to the World Health Organisation (WHO), intimate partner violence is the result of factors occurring at individual, family, community and wider society levels that interact with each other to increase or reduce risk. Domestic Violence cannot be excused under any circumstances. Its root causes are gender power unbalance and the use of power and control. There are some factors that have been identified as contributing to increase the risk of violence.

- lower levels of education
- a history of exposure to child maltreatment
- witnessing family violence
- antisocial personality disorder
- harmful use of alcohol
- harmful behaviours, including having multiple partners or attitudes that condone violence
- community norms that privilege or ascribe higher status to men and lower status to women;
- low levels of women's access to paid employment;

Factors specifically associated with intimate partner violence include:

- past history of exposure to violence;
- marital discord and dissatisfaction;
- difficulties in communicating between partners; and
- male controlling behaviours towards their partners.

Factors specifically associated with sexual violence include:

- beliefs in family honour and sexual purity;
- ideologies of male sexual entitlement; and
- weak legal sanctions for sexual violence.

<https://www.who.int/news-room/fact-sheets/detail/violence-against->

DOMESTIC VIOLENCE STATISTICS

One in four women (25.2 per cent) has experienced physical violence by a male partner, 7.7 per cent has been sexually abused by their male partner.

More than one in every four Jamaican women between the ages of 15 and 64 years of age have, over their life- time, experienced intimate partner physical and/or sexual violence (Lifetime prevalence of intimate physical and/or sexual violence was 27.8 per cent).

Almost two thirds (63.0 per cent) of the women who have experienced intimate partner physical and/or sexual violence sought no help.

Over one-third (39.1 per cent) of the women who have experienced intimate partner physical and/or sexual violence who sought help indicated that they received no help.

SGT. LATOYA GARRICK, Gayle Police Station

CONS. KEIRA THOMPSON, Yallahs Police Station, St. Thomas

CONS. JUNLIE EAST, ...

SGT. WINSOME HIGGINS, Area 5 Headquarters, ...

CPL. KERRON HARRIS, Matilda's Corner Police Station

CPL. DAMION HAMMOND, Greater Portmore Police Station, ...

Should you need our assistance, feel assured that you can speak frankly and in confidence with trained Counsellors, and access the care and guidance —

YES, I.C.A.R.E

WHERE WE ARE LOCATED



CONS. ROMAINE JACKSON,
Negril Police Station,
Westmoreland



CONS. MELISSA ANDERSON,
Alexandria Police Station,
St. Ann



CONS. MARLENE WHITE-JARRETT,
Hayes Police Station,
Clarendon

CPL. DESRENE MCLEOD,
Santa Cruz Police Station,
St. Elizabeth

The DVI centres operate under the principles of Intervention, Counselling, Awareness, Response and Empathy – I.C.A.R.E

PHASES OF DOMESTIC VIOLENCE

It is recognised that there is a pattern of behaviours which keep survivors engaged in an abusive relationship. It has different phases as expressed below:

1

TENSION BUILDING PHASE

When tension builds in the relationship, victims may feel like they are 'walking on eggshells' around the

2

ABUSIVE PHASE

The abusive incident usually occurs when the tension finally breaks. This can play out in many different ways. Usually, this part of the cycle is

3

HONEYMOON PHASE

The abuser may apologise, buy gifts, or be extra affectionate to 'make up' for the abuse. Many will promise to change, or promise that it will never happen again.

IN THE CASE OF SEXUAL ABUSE

A survivor of sexual abuse should go to the closest emergency hospital within 72 hours from the incident. That will permit a medical examination, to receive post exposure prophylaxis to prevent HIV and other Sexually Transmitted Infections as well as possible pregnancies resulting from the rape. In this case, the Centre for the Investigation of Sexual Offences and Child Abuse (CISOCA) is the agency of the JCF in charge to investigate cases of sexual offenses and child abuse.

TYPES OF ABUSE

PSYCHOLOGICAL/MENTAL/EMOTIONAL ABUSE:

Abuse which deliberately destroys your self confidence, making you feel useless, stupid or crazy. It can be described as a type of brainwashing where you believe that everything that goes wrong is your fault.

VERBAL ABUSE:

Constantly putting you down, calling you names, making you feel worthless, or making comments about your competence. This can also include threats of physical abuse.

FINANCIAL ABUSE:

When you are not allowed to have a say in financial decisions, being refused money for family needs, or being made to get into debt for the other person.

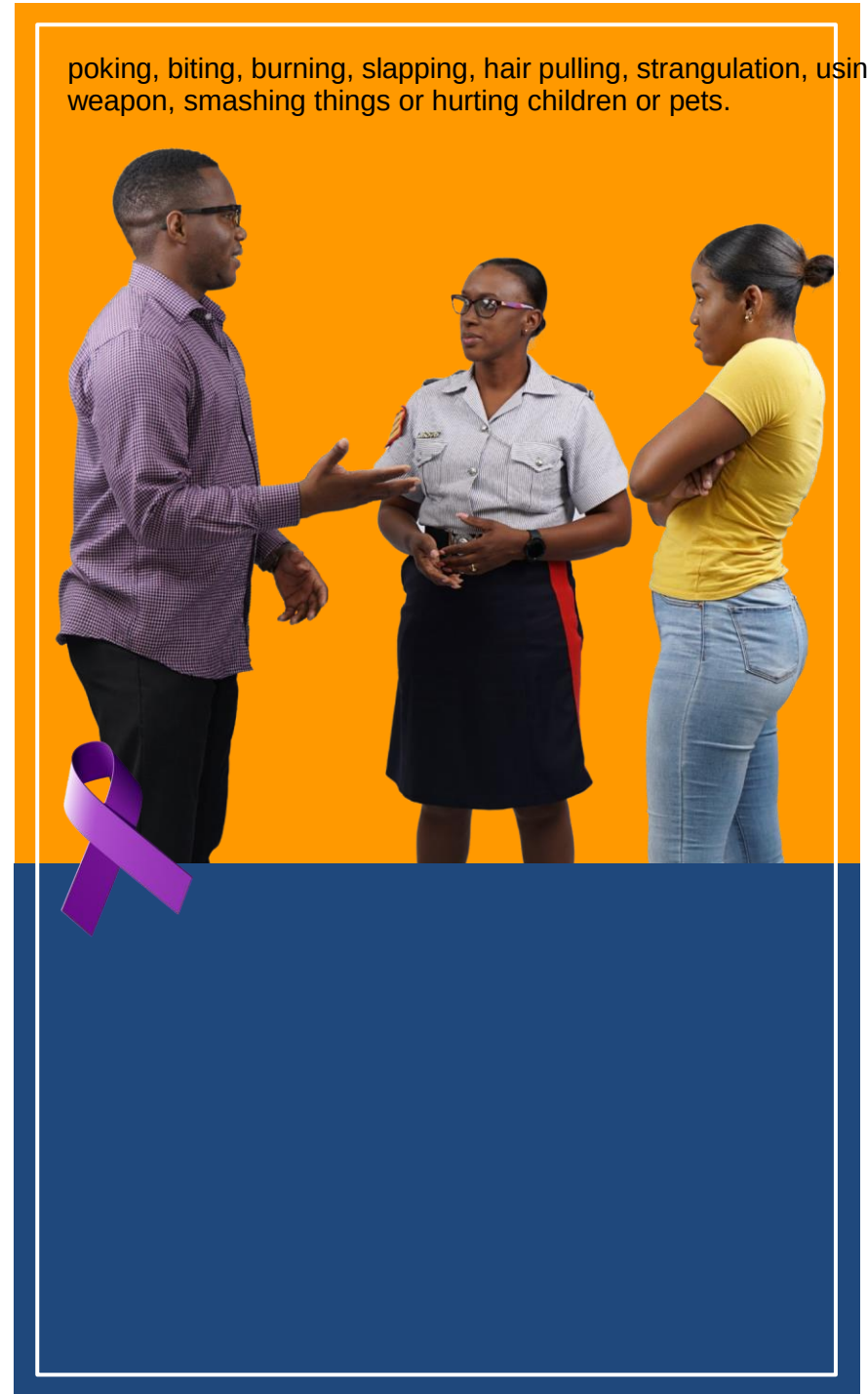
SEXUAL ABUSE:

Being forced to have unwanted sexual contact or being drugged to have unwanted sexual contact.

PHYSICAL ABUSE

Physical assault can take many forms from pushing,

poking, biting, burning, slapping, hair pulling, strangulation, using a weapon, smashing things or hurting children or pets.



MEN ARE DV VICTIMS TOO

WHAT TO DO

IF YOU WITNESS DOMESTIC ABUSE

It can perhaps be even more challenging to approach a friend or family member who is the abuser. When doing so, do not mention that the survivor/victim told you about the violence and speak to the perpetrator only if you are sure you will not put the survivor/victim at further risk.

Here are a few ways you can reach out:

- Approach them calmly and let

them know your concerns about what you have seen and/or heard.

- Let them understand there are no

excuses for abuse.

- Point out that their behaviour can result in them losing their families, friends, homes and jobs if their abusive actions don't stop.
- Hold them accountable for their behavior, especially if they try to place blame elsewhere.
- Remind them that violence and control does not make their family safe.
- Help them to access appropriate help.

<https://www.pcadv.org/about-abuse/intervention/>

If they deny being abusive or reject your help:

- Tell them that you are concerned for their safety and the safety of their partner and the children.
- Never argue with them about their abusive actions.
- Call the police if someone is in danger.
- Offer to go with the abuser should they need additional information or support.



IMPACT OF DOMESTIC VIOLENCE

HEALTH AND FATALITIES

Domestic Violence can result in headaches, pain syndromes (back pain, abdominal pain, chronic pelvic pain) gastrointestinal disorders, limited mobility and poor overall health.

Fatal outcomes like homicide or suicide also occur, as well as serious injuries that require hospitalisation.

REPRODUCTIVE ISSUES

Domestic Violence against women can lead to unintended pregnancies, induced abortions, gynaecological problems,

and sexually transmitted infections, as well as increase the likelihood of miscarriage, stillbirth, pre-term delivery and low birth weight babies.

MENTAL ANGUISH

Domestic Violence can lead to depression, post-traumatic stress and other anxiety disorders, sleep difficulties, eating disorders, and suicide attempts.

CHILDREN

Children who grow up in families where there is violence, can exhibit a range of behavioural and emotional disturbances that can also be associated with perpetrating or experiencing violence later in life.

SOCIO-ECONOMIC

Domestic Violence can stifle women's ability to work, leading to loss of wages, as well as result in lack of participation in regular activities and limited ability to care for themselves and their children.

<https://www.who.int/news-room/fact-sheets/detail/violence-against-women>

JCF'S RESPONSE

EMPOWERING MEMBERS TO SERVE

The Jamaica Constabulary Force (JCF) has a dedicated and consistent programme of training for members to help in their response to domestic violence.

Members are expected to respond appropriately in keeping with the Offences Against the Person Act, The Sexual Offence Act, The Malicious Destruction of Property Act and the Domestic Violence Act (1996).

The laws are to be applied on the merit of case reported.

The resolution of domestic violence relies not only on the law, but also on interventions such as counselling that can help break the cycle of violence.

In this regard, the JCF has also trained and certified Station Pastors and Peer Counsellors to whom perpetrators can be referred.

The COVID-19 pandemic affected many negatively; the restrictions on movement have forced people into close quarters for protracted periods, and persons in abusive situations may be in even greater need than before.

Consequently, over 300 supervisors and managers have had DVI training since 2020, with 168 in the first 3 months of 2021.

This is in addition to the mandatory Domestic Violence Module in place for all police recruits in basic training at the National Police College.



WHAT TO DO

IF YOU WITNESS DOMESTIC ABUSE

Knowing your friend or family member is in an abusive relationship can be a difficult situation to navigate. Here are a few ways you can reach out:

- Speak with the person, approaching them in a safe, private space, listening to them and believing what they say.
- Never blame them or suggest they 'provoked' their partner.
- Let them know the abuse isn't their fault.
- If concerned for their immediate safety contact the police.
- If they decide to press charges against the abusive partner, your statement can help them document what they've experienced.



As a witness, your support is critical to a victim/survivor of domestic abuse.

RECOGNISING THE SIGNS



ARE YOU A WITNESS?

You can detect someone is in an abusive relationship if:

- They seem afraid of their partner or are always very anxious to please him or her.
- They have stopped seeing their friends or family, or cut phone conversations short when their partner is in the room.
- Their partner often criticises them or humiliates them in front of other people.
- They say their partner pressures or forces them to do sexual things.
- Their partner often orders them about or makes all the decisions.
- They often talk about their partner's 'jealousy', 'bad temper' or 'possessiveness'.
- They have become anxious or depressed, have lost their confidence, or are unusually quiet.
- They have physical injuries (bruises, broken bones, sprains, cuts etc.) and may give unlikely explanations for those physical injuries.
- Their children seem afraid of their partner, have behaviour problems, or are very withdrawn or anxious.
- They are reluctant to leave their children with their

JCF'S RESPONSE



- partner.
- After they have left the relationship, their partner is constantly calling, harassing, following them, coming to their house or waiting outside.

<https://www.dvrcv.org.au/help-advice/guide-for-families-friends-and-neighbours>

THE JCF DV INTERVENTION CENTRES

The Jamaica Constabulary Force (JCF) is committed to strong and sustained responses to reports of Domestic Violence, and to the eventual elimination of this social

crisis.

The Domestic Violence Act (1996) notes that domestic violence and abuses must be treated as a serious crime through the courts, and as a social intervention issue which require mediation and counselling.

The resolution of domestic violence therefore relies not only on the law, but also on interventions that can help break the cycle of violence.

As a mark of this issue's high priority on the JCF's crime and violence reduction mandate, in January 2018 the JCF — through partnership with the United States Embassy

and the work of retired Deputy Commissioner of Police, Ms. Novelette Grant — established its first Domestic Violence Intervention (DVI) Centre at the JCF's Area 5 Headquarters. With the Embassy's continued support, as well as in collaboration with the United Nations Development Programme's Spotlight Initiative, 10 centres are now operational across the island.

We understand that your contact with the DVI Centre will be at a moment of heightened distress. So, to enable us to effectively assist you, you must be prepared to provide the Police Officer with accurate and valid information. You should also be willing to work with the trained Counsellor assigned to assist you.

JCF'S RESPONSE

POLICY AND PROCEDURES

The Jamaica Constabulary Force (JCF) has a clearly developed policy that guides members in their treatment of reports of domestic violence.

The objective of the police at any domestic violence situation is always to protect life and property and preserve the peace.

Our primary is to restore order, protect the people involved from each other (or themselves) and arrest anyone found in violation of the law.

Once this has been accomplished, attempts to defuse the situation can be made.

When a case of domestic violence is reported, the Police will — with due sensitivity to the matter — take a statement from the complainant which contains:

- The name, address, age and occupation of the person reporting
- The name, address, age and occupation of other parties involved
- The relationship of the parties involved

- The nature of the dispute



MAKING A REPORT WHAT TO EXPECT DURING AND AFTER

As a domestic abuse victim/survivor, you are entitled to full assistance from the police and the justice system.

Being provided with and kept abreast of information about the case.

Being cared for your safety and well-being.

- Any injuries received,

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information collected will be treated with confidentiality.

All reports of domestic violence/abuse are recorded and a receipt given to the person making the complaint.

If the report is one of physical assault, whether the injury is noticeable or not, a statement is collected and a letter to seek medical attention given to the person making the report.

If the complainant indicates that he/she does not want to proceed through the Courts, this is also recorded in the statement and signed to by the complainant.

The complainant can be further advised to seek the advice of the Courts for a Protection Order or otherwise if necessary.

If the matter is to proceed through the Courts, it is to be investigated and appropriately dealt with, by the investigator following proper case management procedures.

Being treated with respect, dignity, sensitivity and confidentiality.	Receiving professional and unbiased, assistance	Having your reports taken seriously and acted on with urgency.
Having details of the incident	regardless of age, race, gender, religious or	Being provided with information
Having your report taken with equal urgency and attention should it involve a member of the Constabulary.	Being referred to services that victims of domestic violence, such as the JCF's Domestic Violence Centres and other resource agencies	
Being able to understand all the steps and processes being taken.	Being able to follow up with the Police who took your statement and respectfully be given requested information.	Making a complain about not being met. Such can be made to JCF's IPROB by calling/messaging 876-838-30840.

MAKING A REPORT



The Police takes all reports of Domestic Violence seriously.

Do not hesitate to contact us during or after any incident of domestic abuse.

You may call 119, any police station, or any of our 10 Domestic Violence Intervention centres located across the island. See pages 36-41 of this handbook for contact details.

If possible, you may also visit any police station or any Domestic Violence Intervention centre.

You will not be turned away.

To allow us to help you and to get the judicial recourse you deserve, please be prepared to share all relevant details via a statement and to follow through with the process.

THE LAW ON DOMESTIC

THE DOMESTIC VIOLENCE ACT (1996)

- Y** Violence within the home is not outside the scope of the law because it is amongst family members. Perpetration of this type of violence or abuse is governed by the **Domestic Violence Act (1996)**.
- S**
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- f** **The Act:**
- Seeks to provide relief in the form of court orders for the victims of abuse perpetrated by other family members linked by consanguinity, affinity or otherwise.
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- Is, however, a social one as it aims to protect and preserve a harmonious relationship amongst family members. This is evident in the power conferred on the court by S18 to recommend that the relevant parties participate in counseling in a bid to resolve their conflicts.
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The Domestic Violence Act provides a wide scope of protection for various members within a household.

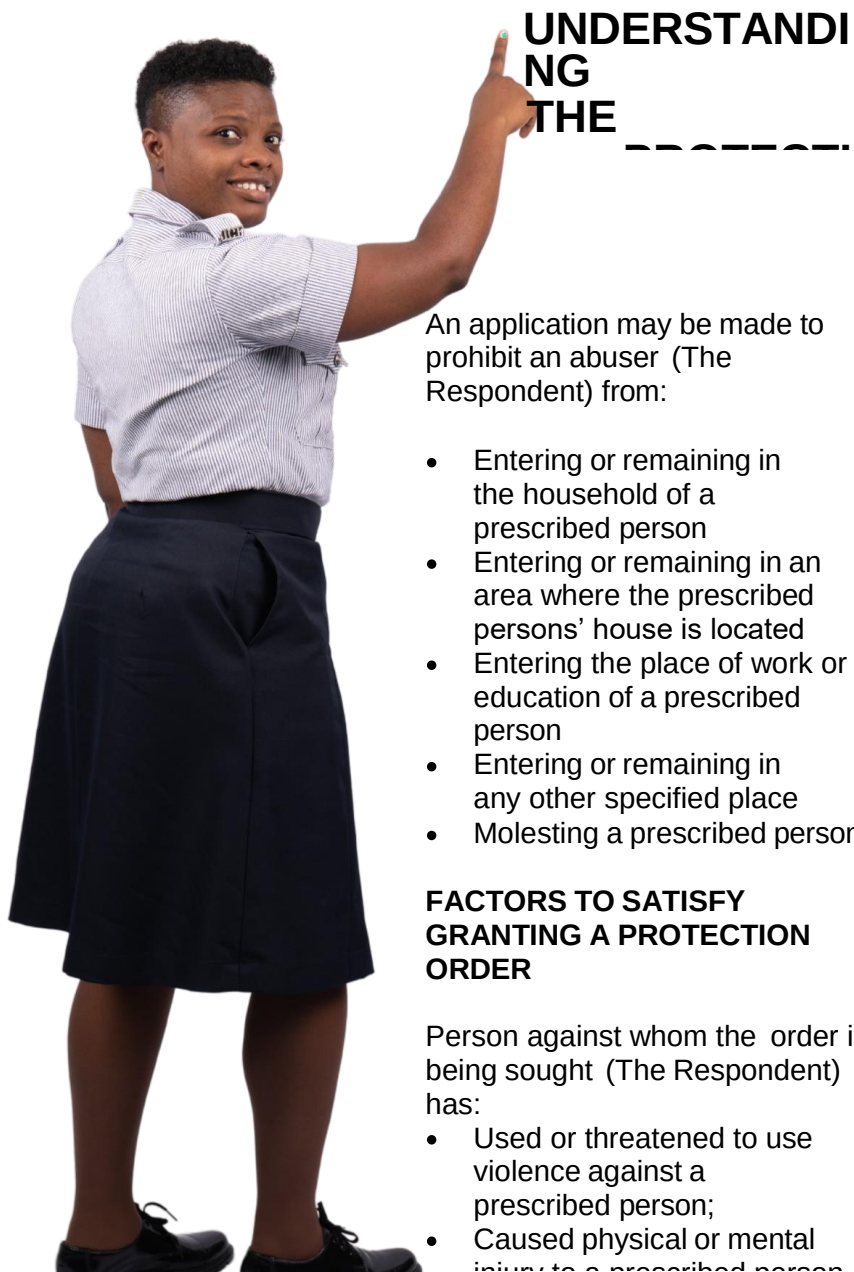
The Act provides a wide scope of protection for various members within a household described in Section 2 as prescribed persons.

- Section 3 confers on the Parish Courts and the Family Court (Kingston and St. Andrew) the power to make certain orders to restrain the perpetrator and prevent him/her from inflicting further acts of violence or abuse on any prescribed person.
- Such orders may be granted consequent on the application made by or on behalf of prescribed persons under the Act.

For the protection of the abused/complainant, an application may be made for:

1. A Protection Order, or
2. A Protection and Occupation Order

THE LAW ON DOMESTIC VIOLENCE



UNDERSTANDING THE PROTECTION ORDER

An application may be made to prohibit an abuser (The Respondent) from:

- Entering or remaining in the household of a prescribed person
- Entering or remaining in an area where the prescribed persons' house is located
- Entering the place of work or education of a prescribed person
- Entering or remaining in any other specified place
- Molesting a prescribed person

FACTORS TO SATISFY GRANTING A PROTECTION ORDER

Person against whom the order is being sought (The Respondent) has:

- Used or threatened to use violence against a prescribed person;
- Caused physical or mental injury to a prescribed person

YOUR PERSONAL SAFETY PLAN

AFTER LEAVING AN ABUSIVE PARTNER



- Replace your phone, phone number and other electronic devices.
- Have your vehicle scanned for tracking devices, or if possible, sell it and purchase another.
- Do not share your whereabouts on online platforms.
- If your ex-partner has to contact you because of your shared children, document each contact.
- Change any standing appointments you and ex-partner may have shared.
- Adjust your routines, such as supermarket days.
- If your ex-partner has moved out, change the locks at home and implement new security measures.
- If you have moved, ensure it's not to an isolated area.
- Be careful who you share your new contact information with.
- Let people know of your new status and that there are now adjustments to resources etc. once held with your ex-partner.
- Reach out to expert agencies for help. Always keep with you or memorise emergency numbers.

YOUR PERSONAL SAFETY PLAN

LIVING WITH AN ABUSIVE PARTNER

- During an argument, go to a safe room.
- Keep weapons locked up or inaccessible or avoid areas in your home where weapons might be available.
- Have easily accessible safe exits from your home.
- Share your safety plan with people you trust (friend, neighbor, family), and have a code word for when you may be in danger.
- Plan and practice your escape, especially with your children.
- If you can't escape the violence, lessen the impact by curling up into a ball, protecting your face and putting your arms around each side of your head, wrapping your fingers together.
- Remove scarves or long jewelry. The abuser could strangle you with these.
- Shield children by sending them to another room.

PLANNING TO LEAVE AN ABUSIVE PARTNER

- Open a new bank account.
- Have a packed bag ready and keep essentials like money, keys, bank cards, IDs, important medications and documents quickly accessible, but well hidden.
- Give an extra set of keys, copies of documents, and even some money to someone you trust.
- Keep digital copies

THE LAW ON DOMESTIC VIOLENCE

THE OCCUPATION ORDER

An Occupation Order is granted in circumstances where the prescribed person resides with the abuser. The court will only grant this order if satisfied that it is necessary for the protection of the applicant or it is in the interest of a child.

The effect of this order is that it gives the prescribed person(s) stipulated therein, the right to occupy the household residence shared with the abuser to the exclusion of the latter (s 9).

The occupation order is usually made for a determinable period as the court deems appropriate.

The application for an Occupation Order may be made without serving notice (ex parte) on the Respondent (the abuser).

An ex parte application will only be granted if:

- The court is satisfied that the respondent used violence or caused mental/physical injury to a prescribed person; and
- The unavoidable delay in proceeding by way of summons could expose the prescribed person to physical injury or undue hardship.

THE ACT AND MARRIED PERSONS

It must be noted that a party to a marriage cannot make an application for a Protection or Occupation Order under the Domestic Violence Act in the Supreme Court as this Court has no jurisdiction under this Act.

- Application in such instances must be made pursuant to section 10 of the Matrimonial Causes Act. The applica-

tion may be made before a Supreme Court Judge whether or not there is divorce proceedings pending, for an injunction where it is necessary for the personal protection of that party to the marriage, relevant child/children and property.

- Spousal and child maintenance may also be applied for.

THE LAW ON DOMESTIC VIOLENCE

WHAT DOES THE ORDER ENTAIL?

- The Order will usually specify the particular relief granted to the applicant.
- It would detail the effective date and duration of the Order.
- How far away from the applicant the respondent is required to remain.
- Penal notice to the respondent should he or she breach the Order.



Unbiased,
professional
counselling
awaits
you at our
DVI
Centre.
No one
gets turned
away.

CRIMINAL CHARGES THAT CAN FLOW FROM ACTS OF DOMESTIC VIOLENCE

A person who through acts of domestic abuse causes personal injury or injuries to property of any prescribed party may be criminally charged. Such charges may be for offences such as:

- Unlawful wounding
- Assault occasioning actual bodily harm

THE JCF CAN HELP YOU



You don't have to fight this battle alone. Our Policemen and women are trained and ready to help you. Call or visit the DVI Centre or



See pages 36-41 for DVI Centre contact

- The malicious destruction of property

RECOGNISING THE SIGNS

IS YOUR PARTNER ABUSIVE?

Acknowledging that you are in an abusive relationship may be difficult, but it's important to recognise the signs in your partner so help can be sought.

- Are you afraid of your spouse?
- Have they ever threatened to kill you?
- Do they believe that their way is the only way?
- Have you ever been hit, slapped, pushed, choked or have your hair pulled by them?
 - Do they often feel jealous?
 - Do they believe they have the right to know your whereabouts and actions all the time?
 - Do they call or text you incessantly when you are out without them?
 - Do they think of themselves as in charge?
 - Do they enjoy seeing you in pain, crying, or hurt?
- Do they believe you deserve to be hit, yelled at or punished?
- Do they believe you 'asked for it'?
- Do they break or destroy your belongings on purpose?
- Have they ever been arrested for violent behavior?
- Do they twist things around, lie, or exaggerate to make you doubt yourself and your sense of reality?

Adapted from <https://www.verywellmind.com/are-you-an-abusive-spouse-2300588>

THE LAW ON DOMESTIC

FAILURE TO OBEY AN ORDER

If the respondent has been properly served/notified of the Court order and breaches the terms of the Order, the applicant may report the breach to the nearest police station.

Under section 5, a breach of a Protection or Occupation Order is an offence. An investigation should be conducted and the offender brought before the court for trial.

A Constable may also arrest, without a warrant, a person against whom a protection or occupation order has been made, where the Constable has reasonable cause to suspect that the person has contravened the terms of the order.

The Constable should only make an arrest in such circumstances where he is of the view that it is necessary for the preservation of the safety of the person(s) in whose

favour the Order was granted.

The police shall take into account:

- the seriousness of the act which constituted the alleged breach,

“A Constable may also arrest, without a warrant, a person against whom a Protection or Occupation Order has been made, where the Constable has reasonable cause to suspect that the person has contravened the terms of the Order.”

- the time that has elapsed since the alleged breach was committed, and
- the restraining effect of other persons or circumstances in the situation.

An arrested person must be brought before the Court within 48 hours of being arrested.

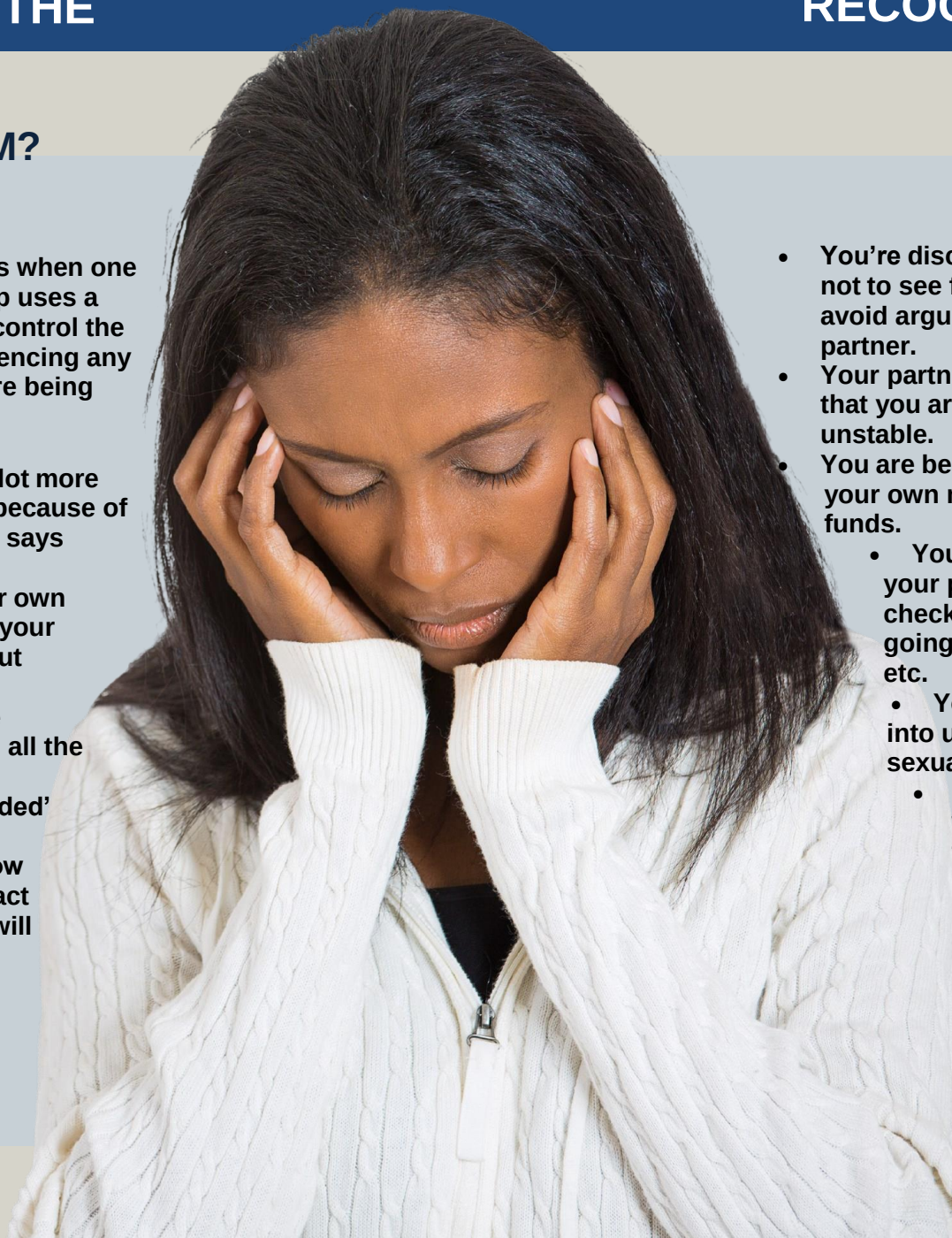
If the respondent is found guilty of breaching the Order he or she is liable to a maximum fine of JMD\$10,000, or a maximum of six months Imprisonment, or both.

RECOGNISING THE SIGNS

ARE YOU A VICTIM?

Domestic abuse occurs when one person in a relationship uses a pattern of behavior to control the other. If you are experiencing any of the following, you are being abused:

- You're becoming a lot more critical of yourself because of things your partner says to/about you.
- You give up on your own opinions and think your partner is right about everything.
- You're feeling more stressed or worried all the time.
- You have that 'dreaded' feeling more often.
- You're scared of how your partner will react to a situation, and will avoid saying something to not upset them.
- You feel scared when your partner is angry because you can't predict their behavior.
- You feel like you're walking on eggshells.



RECOGNISING THE SIGNS

- You're discouraged/or decide not to see family and friends to avoid arguments with your partner.
- Your partner projects the idea that you are crazy or mentally unstable.
- You are being denied access to your own money or joint funds.
 - Your partner breaches your privacy, such as checking your phone, going through mail/ email etc.
 - You are forced into unwanted sexual acts.
 - You are threatened with violence or threatened with a weapon.
 - You are physically attacked—hit, shoved, bit, dragged, choked etc.
 - Your partner damages things that belong to you.
 - If you are part of the

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